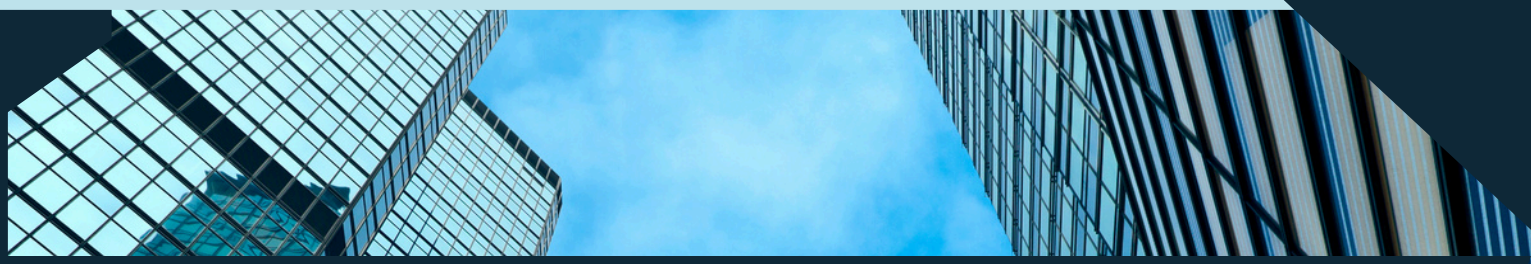
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LEGAL GUIDE TO AIR TRANSPORT BUSINESS IN VIETNAM 2025

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INTRODUCTION

The aviation sector plays a strategic role in Vietnam's socio-economic development and international integration. Its rapid expansion necessitates a comprehensive legal framework to ensure transparency, safety, and operational efficiency.

This publication is published by HMLF to provide a detailed analysis of the international legal system governing air transport activities, and to provide practical guidance from a legal perspective to help air transport enterprises in Vietnam establish and implement effective compliance measures, contributing to ensuring legality, enhancing competitiveness and preventing legal risks in international business activities.



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LEGAL FRAMEWORK GOVERNING THE AVIATION SECTOR





Key applicable legal instruments include:

- The Law on Civil Aviation of Vietnam (2006, amended in 2014 and 2023);
- Decree No. 30/2013/ND-CP; Decree No. 92/2016/ND-CP; Decree No. 89/2019/ND-CP;
- Circulars No. 29/2021/TT-BGTVT, No. 10/2018/TT-BGTVT.

These instruments regulate business conditions, licensing, safety, personnel, and infrastructure standards.

For a broader legal context, please also refer to the Comprehensive Guide to Vietnam's Civil Aviation Law 2025.

CONDITIONS FOR LICENSING AIR TRANSPORT BUSINESS

1. CAPITAL REQUIREMENTS

- Up to 10 aircraft: VND 300 billion.
- 11–30 aircraft: VND 600 billion.
- Over 30 aircraft: VND 700 billion.
- Foreign ownership limited to 34%; indirect foreign capital in Vietnamese entities not exceeding 49%.

2. PERSONNEL REQUIREMENTS

- Executives must have at least 3 years of relevant experience in safety, operations, maintenance, or training.
- Pilots, engineers, technicians, and flight attendants must be certified under ICAO Annex 1 and Circular 10/2018/TT-BGTVT.

3. INFRASTRUCTURE REQUIREMENTS

- Aircraft must be owned or leased, registered, and inspected.
- Maintenance facilities must be licensed and meet technical standards.
- Technical equipment must meet ICAO standards (Annexes 6, 14).

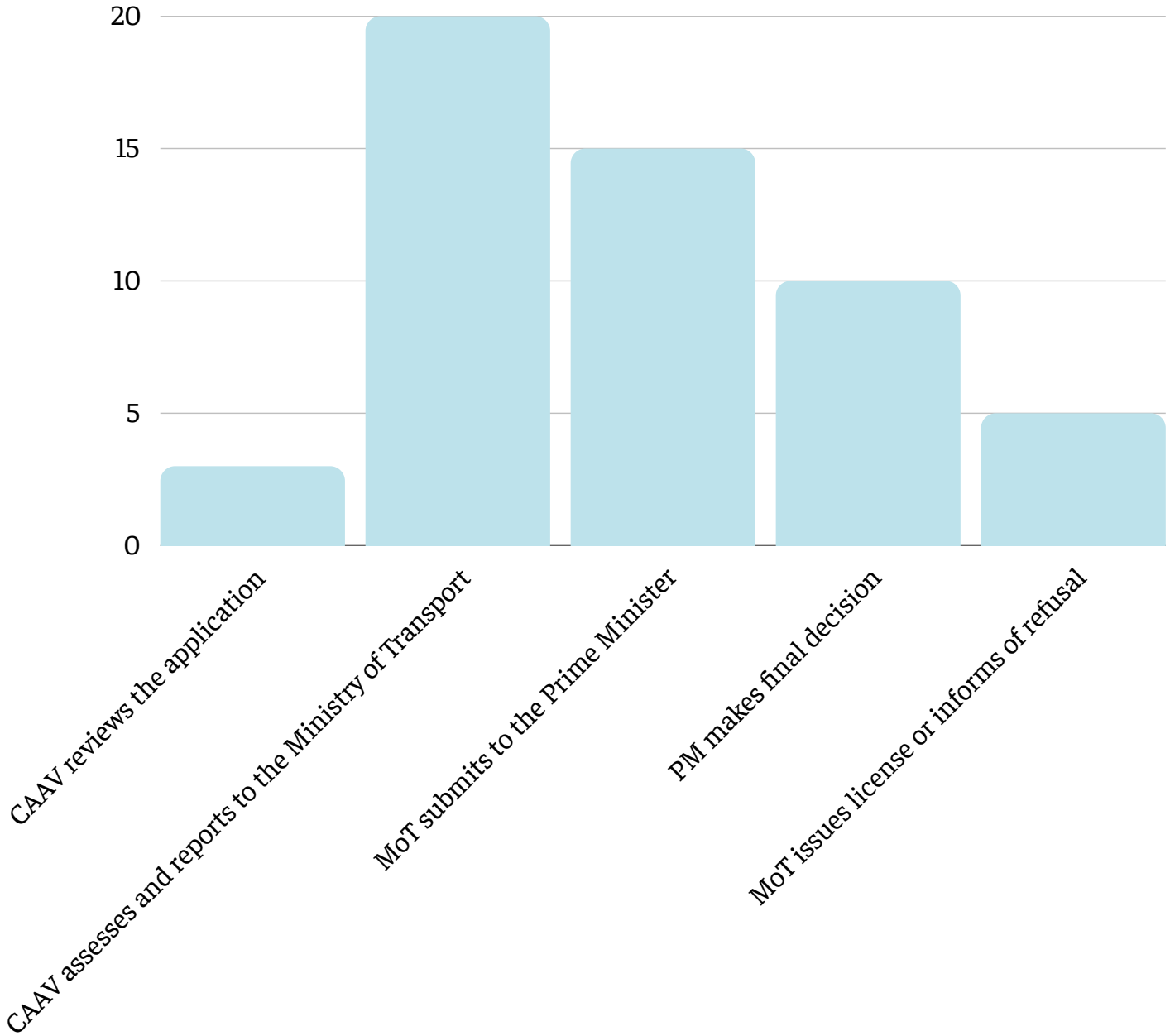
4. SAFETY MANAGEMENT SYSTEM (SMS)

- Mandatory per ICAO Annex 19.
- Must include risk management, training plans, documentation systems, and emergency response procedures.

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LICENSING PROCEDURES

- Application dossier includes: proposal, compliance report, capital confirmation, charter, shareholder list, aircraft contracts, etc.
- Review process: about 60 working days





SAFETY AND SECURITY REGULATIONS

1. Mandatory ICAO Standards:
   - Annex 6: Aircraft operations and maintenance.
   - Annex 14: Aerodrome technical standards.
   - Annex 19: Safety Management Systems.
   - Annex 17: Aviation security and unlawful interference prevention.

2. Assessment and Certification Process:
   - Documented safety plans and systems.
   - On-site inspections and compliance audits.
   - Personnel qualifications and operational readiness.
   - Issuance of air operator certificates.



3. Training and Capacity Building:
   - Initial and recurrent training.
   - Emergency drills and practical evaluations.
   - Updates based on legal and technical changes.



4. Safety Reporting and Supervision:
   - Incident reporting and investigation.
   - Corrective and preventive action tracking.
   - Periodic reports to CAAV as required under Article 61 of the Civil Aviation Law.

For further insight into the sector's investment potential, consider related articles such as Airport Infrastructure Development: A Magnet for Foreign Investment and Promising Sectors for Foreign Direct Investment in Vietnam.

COMPLIANCE WITH INTERNATIONAL REGULATIONS & BILATERAL AGREEMENTS

1. ICAO SARPs Compliance:
   - Vietnam is bound by 19 Annexes under the Chicago Convention.
   - Core Annexes: 1, 6, 11, 16, 17, 19.

2. Bilateral Air Services Agreements (BASAs):
   - Rights, frequency, pricing, insurance, safety obligations.
   - Examples: Vietnam–USA, Vietnam–Turkey BASAs.

3. Freedoms of the Air:
   - Rights 1 to 9, from overflight to cabotage.
   - Must be authorized through valid bilateral/multilateral agreements.

INVESTMENT AND OWNERSHIP REGULATIONS

1. CAPITAL REQUIREMENTS

- VND 300–700 billion depending on scale.
- Minimum equity: VND 100 billion.
- Audited financial reports required annually.

2. FOREIGN OWNERSHIP RESTRICTIONS

- Foreign investors: max 34%.
- Vietnamese entities with foreign capital: max 49%.

3. DATA SECURITY AND CYBERSECURITY COMPLIANCE:

- Compliance with ICAO Cybersecurity Strategy.
- Passenger and cargo screening protocols per national security standards.

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LEGAL COMPLIANCE IMPLEMENTATION ROADMAP STEPS





1. Internal legal review.
2. Detailed compliance plan (budget – timeline – personnel).
3. Implementation: internal legal team, external legal consultants.
4. Regular audits and evaluations.
5. Periodic reports and technical documentation retention.

Related articles to help you better understand the aviation sector:

- Regulations on Investment and Business in Vietnam's Aviation Industry
- Conditions and Licensing Procedures for Air Transport Business in Vietnam

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CONCLUSION AND RECOMMENDATIONS

- Full compliance with Vietnamese and international laws is crucial.
- Enterprises should:
  - Promote a culture of safety.
  - Continuously update legal and operational systems.
  - Integrate technology, risk management, and data governance.
  - Engage expert legal and technical advisors for end-to-end compliance.



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